

JDF 477	Motion to Seal Non-Conviction Records (simplified Process for Non-Convictions)	
1. Court ☐ District ☐ County Colorado County: <u>El Paso</u> Court Address: _____		<i>This box is for court use only.</i>
2. Parties to the Case Plaintiff: People of the State of Colorado v. Defendant: <u>Maria-Alejandra O'Shaughnessy-Whitfield</u>		
		3. Case Details Number: <u>2024CR0011882-SUPPLEMENTAL</u> Division: _____ Courtroom: _____

4. Background

I file this motion under Colorado Revised Statutes (C.R.S.) sections (§§) 24-72-705 or, for convictions vacated through C.R.S. § 18-1-410.7(5)(b), C.R.S. § 24-72-707.

5. My Information *(the Defendant)*

Full Name: Maria-Alejandra O'Shaughnessy-Whitfield Birth Date: 1968-12-31
 Current Mailing Address: *(with city/state/zip)* 1188 Upper Notch Crossing Road, Apartment 14B, Colorado Springs, CO 80921-2214
 Phone: (719) 555-0199 ext. 4417 Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

6. Grounds for Sealing Records

- ☐ I was acquitted of all charges on _____
- ☐ The case was completely dismissed on _____, and the dismissal was not part of a plea agreement in a separate case.
- ☐ The Court vacated my conviction in this case because it found I was the victim of human trafficking when the offense occurred. C.R.S. § 18-1-410.7(5)(b).
- ☐ I completed a diversion agreement on _____
- ☐ I completed a deferred judgment and sentence on _____, and the deferred judgment and sentence does not pertain to any of the following offenses:
- a) A felony offense concerning the holder of a commercial driver's license or the operator of a commercial motor vehicle under C.R.S. § 42-2-402.
 - b) A felony offense for which the factual basis involved unlawful sexual behavior under C.R.S. § 16-22-102(9).

7. Affirmations

I affirm that:

- a) I do not owe any restitution, or the Court has vacated such order(s).
- b) The records, in this case, do not pertain to underage ethyl alcohol, marijuana, and paraphernalia offenses that are subject to the procedure set forth in C.R.S. § 18-13-122, and this case contains at least one charge that is not a class 1 misdemeanor traffic offense, class 2 misdemeanor traffic offense, class A traffic infraction, or class B traffic infraction. Charges in this case were not dismissed pursuant to C.R.S. § 16-8.5-116.

8. Records to be Sealed

Agencies having records related to this case are: *(check all that apply)*

- ☐ Prosecuting Attorney
- ☐ Sheriff's Department
Mailing Address: _____
- ☒ Colorado Bureau of Investigation *(Required)*
ATTN Identification-Seals, 690 Kipling St. STE 3000, Lakewood, CO 80215
- ☐ Law Enforcement: (Name) _____ Case Number: _____
Mailing Address: _____
- ☐ Other: _____
Mailing Address: _____

Arrest number: *(from fingerprint card)* _____ Date: _____

I respectfully request that any criminal justice records, except identifying information, related to this case be sealed promptly.

9. Certificate of Service

On *(enter service date)* _____

I certify that I sent a copy of this document to the prosecuting attorney by: *(select one)*

- ☐ Colorado Courts E-Filing. *(only available to lawyers)*
- ☐ Regular Mail, addressed to:
Name & full address: _____
- ☐ Other: *(explain)* _____

10. Verified Signature

I declare under penalty of perjury under the law of Colorado that the foregoing is true and correct.

Executed on the *(date)* _____ day of *(month)* _____ *(year)* _____

at City: *(or other location)* _____

and State: *(or country)* _____

Print Your Name: _____

Your Signature: _____

Counsel Signature: *(if any)* _____

☐ Esq. Reg No. _____

JDF 492	Order Denying Request to Seal Non-Conviction Records
A. Court ☐ District ☐ County Colorado County: <u>El Paso</u> Court Address: _____	<i>This box is for court use only.</i>
B. Parties to the Case Plaintiff: People of the State of Colorado v. Defendant: <u>Maria-Alejandra O'Shaughnessy-Whitfield</u>	
C. Case Details Number: <u>2024CR0011882-SUPPLEMENTAL</u> Division: _____ Courtroom: _____	

1. Decision

After reviewing the request to seal the Defendant's records, the Court finds:

- ☐ The motion, on its face, is insufficient. Or,
- ☐ After review of matters outside the motion, the Defendant is not entitled to relief under C.R.S. §§ 24-72-705 or, for convictions vacated through C.R.S. § 18-1-410.7(5)(b), C.R.S. § 24-72-707.

The Court denies the motion because:

2. So Ordered

By: _____
☐ Judge ☐ Magistrate

Dated: _____

JDF 493	Order and Notice of Hearing (re sealing non-conviction records)	
A. Court ☐ District ☐ County Colorado County: <u>El Paso</u> Court Address: _____		<i>This box is for court use only.</i>
B. Parties to the Case Plaintiff: People of the State of Colorado v. Defendant: <u>Maria-Alejandra O'Shaughnessy-Whitfield</u>		
		C. Case Details Number: <u>2024CR0011882-SUPPLEMENTAL</u> Division: _____ Courtroom: _____

1. Hearing Scheduled

A hearing on this matter has been set at the location identified in the caption as follows:

Date: _____ **Time:** _____

☐ If checked, the Defendant is required to attend the hearing.

2. Decision

The defendant filed a Motion to Seal Non-Conviction Records in this Court under C.R.S. §§ 24-72-705 or, for convictions vacated through C.R.S. § 18-1-410.7(5)(b), C.R.S. § 24-72-707. The Court finds that a hearing is necessary in this matter because the Defendant is seeking to seal an offense that is a crime enumerated in C.R.S. § 24-4.1-302.

3. So Ordered

By: _____
☐ Judge ☐ Magistrate

Dated: _____

JDF 478	Order to Seal Non-Conviction Records	
A. Court ☐ District ☐ County Colorado County: <u>El Paso</u> Mailing Address: _____		<i>This box is for court use only.</i>
B. Parties to the Case Plaintiff: People of the State of Colorado v. Defendant: <u>Maria-Alejandra O'Shaughnessy-Whitfield</u>		
		C. Case Details Number: <u>2024CR0011882-SUPPLEMENTAL</u> Division: _____ Courtroom: _____

1. Background

The Court finds the Defendant is eligible for relief under C.R.S. § 24-72-705 or, for convictions vacated through C.R.S. § 18-1-410.7(5)(b), C.R.S. § 24-72- 707.

2. Defendant's Information

- a) Full Name: Maria-Alejandra O'Shaughnessy-Whitfield
- b) Birth Date: _____
- c) Mailing Address: _____
- City: _____ ST: _____ Zip Code: _____

3. Records to be Sealed

- ☐ County Court case number: _____

☐ District Court case number: _____

☐ Law Enforcement Agency: _____

Case/Arrest number: _____ Dated: _____

Mailing Address: _____

☐ Colorado Bureau of Investigation *(required)*

ATTN Identification-Seals, 690 Kipling St. STE 3000, Lakewood, CO 80215

☐ _____

☐ _____

☐ _____

4. Court Orders

a) Records Sealed

The Records must be sealed immediately, except for basic identifying information. If an inquiry is made, the Person in Interest and Criminal Justice Agency may reply that no such records exist. This order applies to public and private custodians of the record.

b) Case Sealed

The Court directs the Clerk of Court to seal the criminal cases listed above.

c) Service

The Court's clerk shall provide a copy of this Order to the Colorado Bureau of Investigation (CBI) and to each record custodian checked above within 28 days of disposition. C.R.S. §§ 24-72-705(1)(a.5) and 703(8).

d) Other Orders

5. So Ordered

By: _____
☐ Judge ☐ Magistrate

Dated: _____